

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.14980-J of 2021

(Mohsin Raza v. The State)

and

Criminal Revision No.9747 of 2021

(Khatoon Bibi v. Mohsin Raza etc.)

JUDGMENT

Date of hearing: 13.05.2026

Appellant by: Ch. Awais Ahmad Siddiqui, Advocate.

Complainant by: Mr. Faisal Iqbal Bajwa, Advocate.

State by: Ms. Sadia Arif, Deputy District Public Prosecutor.

ABHER GUL KHAN, J. The appellant Mohsin Raza along with co-accused Kamran Raza, Hafiz Ali Raza, Mehram Ali, Muhammad Boota, Saif Bhatti and Usman Ali involved in case FIR No.154/2018 dated 08.02.2018 registered under Sections 302, 324, 337-F (ii), 337-D, 148 & 149 PPC at Police Station South Cantt., Lahore, was tried by Additional Sessions Judge, Lahore. Trial court vide judgment dated 04.02.2021 acquitted the afore-said co-accused, however convicted and sentenced the appellant in the following terms:-

(i).Under Section 302(b) PPC to suffer imprisonment for life for *qatl-i-amd* of the deceased Qaiser Junaid as *ta'zir*. He was further directed to pay Rs.5,00,000/- as compensation to the legal heirs of the deceased under Section 544-A Cr.P.C. and in default thereof to undergo simple imprisonment for six months.

(ii).Under Section 324 PPC to suffer rigorous imprisonment for ten years for attempting to commit *qatl-i-amd* of the injured Sajawal (PW.8). He was further directed to pay Rs.50,000/- as fine and in default thereof to undergo simple imprisonment for two years.

(iii).Under Section 337-D PPC to suffer rigorous imprisonment for five years. He was further directed to pay one third of Diyat amount i.e. Rs.925,784/- as Arsh. In lieu of non-payment of Arsh, the convict was ordered to be kept in jail.

All the sentences awarded to the appellant were ordered to run concurrently and benefit of Section 382-B Cr.P.C., however was extended to the convict.

Aggrieved by his convictions and sentences the appellant filed Criminal Appeal No.14980-J of 2021, while the complainant Mst.Khatoon Bibi (PW.9) filed Criminal Revision No.9747 of 2021

for the enhancement of sentence of the appellant Mohsin Raza. Both these matters are being disposed of through this single judgment.

2. Briefly stated, the prosecution case, as narrated by the complainant Mst. Khatoon Bibi (PW.9) in FIR (Exh.PQ) is that she is a resident of Rehmat Pura, Main Bedian Road, Lahore. On 08.02.2018 at about 6:00/7:00 p.m., her son, namely Qaiser Junaid (deceased), along with his friends Sajawal alias Badshah (PW.8) and Abdul Rehman (given up PW) proceeded to meet the appellant Mohsin near Khurshid Model School regarding settlement of a monetary dispute. During the course of said meeting, an altercation ensued between the deceased Qaiser Junaid and the appellant Mohsin Raza. Thereafter, the appellant Mohsin Raza went towards his house and returned shortly along with his brother Kamran, Saif Bhatti, Boota and 2/3 unknown accused, all armed with knives and clubs. After their arrival at the spot accused Kamran caught hold of Qaiser Junaid from behind, whereupon appellant Mohsin Raza inflicted a knife blow upon him. Co-accused Saif Bhatti (since acquitted) also caused a knife injury to Sajawal alias Badshah (PW.8) on the left side of his abdomen, whereas Boota and the unknown accused gave club blows to Abdul Rehman (given up PW), thereby injured him. As a consequence of the knife injury attributed to appellant Mohsin, Qaiser Junaid fell on the ground in an injured condition. The occurrence was witnessed not only by the complainant herself but also by Muhammad Afzal (PW.6) and Muhammad Kamran (PW.7). Thereafter, the injured Qaiser Junaid, Sajawal alias Badshah and Abdul Rehman, were shifted to General Hospital through ambulance of Rescue 1122, however Qaiser Junaid succumbed to the injuries.

3. On 08.02.2018, upon receipt of information regarding the occurrence, Habib Ahmad SI (PW.10) reached General Hospital, Lahore, where the complainant Mst. Khatoon Bibi (PW.9) submitted a written application (Exh.PO). On the basis thereof, the requisite police endorsement was recorded and the same was dispatched through Saif Ullah 8601/C to the police station for registration of the formal FIR. As per record the investigation was thereafter entrusted to Saif Ullah

SI (not produced) who visited the place of occurrence on 08.02.2018 and secured blood-stained earth with the help of cotton, which was taken into possession vide recovery memo Exh.PJ. On 14.03.2018, during the course of investigation, the appellant Mohsin Raza made a disclosure and in consequence thereof led to the recovery of a Chhurri (P.5) which was taken into possession by the aforesaid investigating officer through memo Exh.PM. Upon completion of the investigation, the report under Section 173 Cr.P.C. was submitted before the learned trial court.

4. In order to substantiate the charge against the appellant Mohsin Raza, the prosecution produced as many as eleven witnesses. Foremost amongst them, Dr.Khyzer Hayat Sukhera (PW.2) conducted the postmortem examination on the dead body of deceased Qaiser Junaid on 09.02.2018 at about 11:30 a.m. and thereafter issued the postmortem report (Exh.PF) along with pictorial diagrams (Exh.PF/1 and Exh.PF/2). On the same day, Dr.Saqib Nadeem (PW.3) conducted medico-legal examination of the injured Abdul Rehman and Sajawal and issued medico-legal certificates (Exh.PG and Exh.PH), respectively. The ocular account of the occurrence was furnished by Muhammad Afzal (PW.6), Muhammad Kamran (PW.7), injured Sajawal (PW.8) and the complainant Mst. Khatoon Bibi (PW.9). The investigation of the case had initially been conducted by Saif Ullah, Sub-Inspector, who however, was not produced before the learned trial Court. In his place, Abb-ul-Asar constable (PW.5) appeared and deposed regarding the investigative steps allegedly undertaken by the said investigating officer during the course of investigation. The remaining witnesses are formal in nature and were examined to establish ancillary and procedural aspects pertaining to the completion of investigation. Upon conclusion of the prosecution evidence, the statement of the appellant Mohsin Raza was recorded under Section 342, Cr.P.C., wherein all incriminating pieces of evidence appearing against him were put to him. The appellant denied the prosecution allegations in toto, professed innocence and asserted false implication in the case. However, the appellant neither opted to make statement

on oath under Section 340(2), Cr.P.C., nor produced any evidence in defence. At the culmination of the trial, the learned trial Court found the appellant guilty of the charge, convicted and sentenced him accordingly, hence the instant criminal appeal and criminal revision.

5. Arguments heard. Record perused.

6. A careful perusal of the record reveals that the instant case arises out of an occurrence which allegedly took place on 08.02.2018 at about 6:00/7:00 p.m. near Khurshid Model School, Bedian Road, situated at a distance of about five kilometers from Police Station South Cantt., Lahore. According to the prosecution, the appellant Mohsin Raza, along with his co-accused all allegedly armed with Chhurries and clubs, inflicted injuries with their respective weapons upon Qaiser Junaid (deceased), Sajawal alias Badshah (PW.8) and Abdul Rehman (given up PW). The injured were thereafter reportedly shifted through ambulance of Rescue-1122 to General Hospital, Lahore, where Qaiser Junaid succumbed to the injuries sustained by him. The record further reflects that information regarding the occurrence was conveyed to the police by the complainant Mst. Khatoon Bibi (PW.9), who submitted a written application (Exh.PO) before Habib Ahmad, SI (PW.10) on the basis whereof the formal FIR (Exh.PQ) was chalked out.

7. This Court has further observed that according to the contents of the FIR (Exh.PQ) the complainant Mst.Khatoon Bibi (PW.9) nominated the appellant Mohsin Raza, his brother Kamran, Saif Bhatti and Boota, along with 2/3 unknown accused. During the course of investigation, the complainant made a supplementary statement wherein she additionally implicated Ali Raza, Mehram Ali and Usman Ali as the persons who had initially been mentioned as unknown accused in the FIR. Consequently, in all seven accused including the appellant faced trial before the learned trial court. It is significant to note that through the impugned judgment, only the appellant Mohsin Raza was found guilty and convicted, whereas all the remaining co-accused were acquitted of the charge. The record further reveals that against the acquittal of the said co-accused, the complainant

Mst.Khatoon Bibi (PW.9) preferred Criminal Appeal No.9742 of 2021, which came up for hearing before a learned Division Bench of this Court on 22.10.2025. The said appeal, however, was dismissed as not pressed on behalf of the complainant, with the result that the acquittal of the co-accused attained finality. In the aforesaid circumstances, where the prosecution case was disbelieved by the learned trial Court to the extent of six co-accused on the basis of the same set of evidence, the conviction and sentence of the appellant could only be sustained if supported by strong, independent and confidence-inspiring evidence distinctly connecting him with the commission of the offence.

8. In the light of the foregoing discussion, this Court has minutely examined the entire record with the able assistance of the learned counsel for the parties. It has been noted that according to the prosecution version the occurrence allegedly took place on 08.02.2018 at about 6:00/7:00 p.m., whereas the matter was reported to the police by the complainant Mst.Khatoon Bibi (PW.9) at General Hospital, Lahore, on the same day at about 8:35 p.m. through a written application (Exh.PO) submitted before Habib Ahmad SI (PW.10). A careful scrutiny of the prosecution case reveals that the complainant herself was uncertain regarding the exact time of occurrence, as she merely stated that the incident had taken place at about 6:00/7:00 p.m. According to her version, deceased Qaiser Junaid along with Sajawal alias Badshah (PW.8) and Abdul Rehman had gone to meet the appellant Mohsin Raza near Khurshid Model School in connection with a monetary dispute, where an altercation ensued between the parties. Allegedly, thereafter the appellant Mohsin Raza proceeded to his house and returned along with his brother Kamran, co-accused Saif Bhatti, and 2/3 unknown accused (later nominated as Ali Raza, Mehram Ali and Usman Ali) armed with Chhurries and clubs. The complainant alleged that the appellant Mohsin Raza inflicted a Chhurri blow upon deceased Qaiser Junaid, while co-accused Saif Bhatti (since acquitted) caused a Chhurri injury on the left side of the abdomen of Sajawal alias Badshah (PW.8). It is further alleged that

accused Boota along with the unknown accused caused club blows to Abdul Rehman (given up PW). According to the complainant, all the injured, namely Sajawal alias Badshah, Abdul Rehman and Qaiser Junaid, were shifted in an injured condition to General Hospital, Lahore through Rescue 1122, where Qaiser Junaid succumbed to the injuries. From the tenor of the written application, an impression prima facie emerges that the complainant herself had witnessed the occurrence. However, upon a careful examination of the record, the same does not appear to be correct. In the first instance, the complainant was not certain regarding the precise time of occurrence and vaguely mentioned the same as having taken place at about 6:00/7:00 p.m., which circumstance, by itself, casts a shadow of doubt upon the prosecution version. Secondly, while submitting the written application (Exh.PO), the complainant did not specify the exact part of the body of deceased Qaiser Junaid where the alleged injury was sustained at the hands of the appellant Mohsin Raza. Furthermore, while appearing before the learned trial Court, Mst.Khatoon Bibi (PW.9) stated that her son Muhammad Afzal (PW.6) was present at the place of occurrence who had informed her about the incident. During cross-examination, she candidly admitted that at the relevant time she was present at her house and that the occurrence had been narrated to her by Muhammad Afzal (PW.6) at about 6:45 p.m. Although she attempted to explain during cross-examination that in the written application (Exh.PO) she had mentioned that the incident was reported to her by Muhammad Afzal (PW.6) yet when confronted with the contents of the said application, no such recital was found incorporated therein. It has further been observed that during her cross-examination, the complainant stated that the written application had been scribed by a police official prior to the arrival of the police officer before whom the application was presented, though she expressed ignorance regarding the name of the said official. Since the aforesaid aspect goes to the root of the matter, the relevant portion of the cross-examination of Mst. Khatoon Bibi (PW.9) is reproduced hereunder:-

“I don’t know the name of police officer to whom I gave application Ex.PO. Said application had been written by the police official before arrival of the officer but he was S.I.”

From the foregoing discussion, it becomes manifestly clear that the complainant Mst.Khatoon Bibi (PW.9) was not an eyewitness of the occurrence and that the story furnished by her before the police as well as before the learned trial Court was purely hearsay in nature, having been based upon information allegedly conveyed to her by others after the incident.

9. This Court has further observed that the ocular account in the present case has been furnished by Muhammad Afzal (PW.6), Muhammad Kamran (PW.7) and the injured Sajawal (PW.8). So far as the testimony of the first two alleged eyewitnesses is concerned, it may be noted that in the FIR (Exh.PQ), the complainant Mst.Khatoon Bibi (PW.9) merely stated that her son Qaiser Junaid (deceased) had gone towards Khurshid Model School along with his friends Sajawal alias Badshah and Abdul Rehman but in discontinuation of the sequence in the middle of the written application (Exh.PO), it was stated that when the deceased, after sustaining injuries, fell on the ground, Muhammad Afzal (PW.6) and Muhammad Kamran (PW.7) also witnessed the occurrence. However, the complainant did not disclose in the FIR as to how and under what circumstances the said alleged eyewitnesses had reached the spot. Muhammad Afzal (PW.6) in his examination-in-chief stated that on 08.02.2018 at about 6:00/6:30 p.m. he was proceeding towards the house of his contractor, situated at a distance of 5/6 houses from the place of occurrence, when he allegedly heard noise and upon reaching there, saw Sajawal alias Badshah (PW.8) bleeding from the left side of his chest below the heart. He further stated that within his sight the appellant Mohsin Raza inflicted a Chhurri blow upon the deceased Qaiser Raza. According to him, he then lifted the deceased with the assistance of Kamran and Ehsan, dispatched him to hospital on a motorcycle along with Kamran and Ehsan, and thereafter proceeded to his house to inform his mother Mst.Khatoon Bibi (PW.9) about the occurrence. It is noteworthy that Muhammad Afzal (PW.6) is the real brother of the

deceased, yet his conduct as projected appears highly unnatural and contrary to ordinary human behaviour. It is beyond comprehension and repugnant to common sense that a real brother, allegedly present at the spot would leave his grievously injured brother in the hands of others for transportation to hospital and would instead leave the crime scene to inform his mother. Furthermore, though he claimed to have witnessed the appellant inflicting injury upon the deceased, yet he admittedly made no attempt to rescue his brother or apprehend the assailants. During cross-examination, he stated that he ran towards the appellant Mohsin Raza, who allegedly fled away, however, this version does not find mention in his police statement (Exh.DA). It is further significant that the place of occurrence was stated to be about one kilometer from his residence, yet he failed to furnish any plausible explanation for his presence at the spot at the relevant time. His presence is further rendered doubtful from his admission that the written application (Exh.PO) was not authored by him, but was scribed by a police official, whose name he could not disclose, and was dictated by his mother at the hospital at about 8:00/8:30 p.m. It also appears highly improbable that Muhammad Afzal (PW.6), a 24-year-old alleged eyewitness and real brother of the deceased, who was present at the hospital with his mother, would not have been the natural complainant in the case, particularly when the complainant herself was admittedly not an eyewitness. Similarly, Muhammad Kamran (PW.7), in his examination-in-chief, stated that upon receiving a call from his friend Abdul Rehman (given up PW), he reached the spot and witnessed the occurrence. He further stated that the appellant first inflicted a Chhurri blow upon Sajawal (PW.8), who fell injured, and thereafter caused a Chhurri blow which landed on the chest of the deceased Qaiser Raza. This version is in material contradiction with the contents of the FIR (Exh.PQ), wherein it was specifically stated that Saif Bhatti (since acquitted) had caused the injury to Sajawal. Muhammad Kamran (PW.7) further stated that he made a call to Rescue-1122 and that the ambulance reached the spot. However, this version is inconsistent with that of Muhammad Afzal

(PW.6), who stated that he, along with Kamran and Ehsan, transported the injured Qaiser Junaid on a motorcycle to the hospital. During cross-examination, Muhammad Kamran (PW.7) stated that he remained at the place of occurrence for about ten minutes and did not sustain any injury. He further stated that he shifted the deceased to Bhatta Chowk where the ambulance arrived and thereafter the injured was taken to hospital. However, this assertion was confronted with his police statement (Exh.DB), wherein no such fact was recorded. It is further pertinent to note that Muhammad Afzal (PW.6) stated in cross-examination that he reached the hospital at about 8:00/8:30 p.m., whereas Muhammad Kamran (PW.7) stated that he reached the hospital at about 7:00/7:15 p.m. Such material discrepancy between the two alleged eyewitnesses on a vital aspect of the case further creates serious doubt regarding their presence at the spot. The presence of Muhammad Afzal (PW.6) at the place of occurrence was further confused by injured Sajawal (PW.8) who deposed during examination-in-chief that **“Hamid and Imran shifted me at Chiragdin hospital and in the meanwhile Afzal had also arrived at place of occurrence.”** Meaning thereby he is also not eyewitness of the occurrence. In view of the aforesaid contradictions, improvements and inherent improbabilities, this Court is of the considered view that the presence of both Muhammad Afzal (PW.6) and Muhammad Kamran (PW.7) at the place of occurrence appears to be highly doubtful and their names seem to have been subsequently introduced only to give strength to an otherwise doubtful prosecution case.

9. This Court is also not oblivious of the fact that the prosecution has placed reliance upon the statement of Sajawal (PW.8), who is stated to have sustained a stab injury at the hands of the appellant Mohsin Raza during the occurrence. It is well-settled that the presence of an injured witness at the place of occurrence ordinarily carries some assurance of his presence at the spot, and the factum of sustaining injuries may, to a certain extent, lend corroboration to his version. However, such a circumstance, by itself, does not furnish conclusive proof of the truthfulness and correctness of the entire

ocular account deposed by such witness. Even the testimony of an injured witness is required to be evaluated in the light of settled principles governing the appreciation of evidence, and it cannot be accepted as gospel truth without independent scrutiny. The oft-quoted principle that an injured witness would not ordinarily spare the real culprit and falsely implicate an innocent person, though generally acceptable, yet cannot be applied as an absolute rule in all cases, particularly where multiple accused are involved and there exists a possibility of exaggeration, embellishment, or over-implication of the accused. In such like circumstances, it would be unsafe to base conviction solely or mechanically upon the statement of an injured witness unless the same inspires confidence and passes the strict test of credibility upon careful and cautious evaluation of the entire material on record. Reliance is placed upon the case reported as Amin Ali v. The State (2011 SCMR 323) wherein the Supreme Court of Pakistan observed as under:-

“Certainly, the presence of injured witnesses cannot be doubted at the place of incident, but the question is as to whether they are truthful witnesses or otherwise, because merely the injuries on the person of P.Ws. would not stamp them truthful witnesses.”

In another case reported as Nazir Ahmad v. Muhammad Iqbal and another (2011 SCMR 527), the Supreme Court of Pakistan while examining the case of an injured witness held as under:-

“It is settled law that injuries of PWs are only indication of his presence at the spot but are not affirmative proof of his credibility and truth. See Said Ahmed’s case (1981 SCMR 795) and Muhammad Pervez’s case (2007 SCMR 670).”

In the light of the foregoing observations, this Court has minutely examined the record and is of the considered view that the statement of the alleged injured witness Sajawal (PW.8) does not inspire confidence and is not worthy of reliance for the purpose of sustaining the conviction of the appellant. In this regard, it is pertinent to note that Sajawal (PW.8), in his examination-in-chief stated that he was caught from his left arm from behind by someone without naming the appellant and was inflicted a Chhurri blow, as a result whereof he fell on the ground. He further deposed that he saw a Chhurri in the right

hand of the appellant Mohsin Raza, while co-accused Saif Bhatti (since acquitted) was also allegedly present with him at the spot. Since the aforesaid aspect is of material significance, the relevant portion of the examination-in-chief of Sajawal (PW.8) is reproduced hereunder:-

“Someone apprehended me from my left arm from my back and inflicted dagger blow. I fell down. I saw Churri in the right hand of Mohsin and Saif Bhatti was also standing with him.”

From above, it becomes evident that the identity of the person who allegedly inflicted the Chhurri blow upon Sajawal (PW.8) is not stated with clarity or consistency, thereby rendering his version doubtful on this material aspect. Sajawal (PW.8) further stated that he was shifted to Chiragdin Hospital and during the course of his treatment, injured Abdul Rehman also reached there, whereafter ambulance of Rescue-1122 arrived and both the injured were subsequently shifted to General Hospital, Lahore. In order to appreciate the true import of his statement, it is considered appropriate to reproduce the exact words deposed by Sajawal (PW.8), which are as under:

“Hamid and Imran shifted me at Chiragdin hospital..... Abdul Rehman injured also arrived there. Hospital staff did not provide us first aid. In the meanwhile ambulance of 1122 reached there and I and Abdul Rehman were shifted at General Hospital, Lahore.”

However, it is significant to note that the aforesaid Hamid and Imran, who allegedly shifted Sajawal (PW.8) to Chiragdin Hospital, were neither associated during investigation nor produced at the trial stage to substantiate this crucial aspect of the prosecution version, which further weakens the evidentiary value of the said narrative. It further transpires from the record that injured Sajawal (PW.8) along with injured Abdul Rehman (given up PW) was medically examined by Dr.Saqib Nadeem (PW.3) on 08.02.2018 at about 7:58 p.m., who issued medico-legal certificates (Exh.PH and Exh.PG). Since injured Abdul Rehman was given up by the complainant-side on the ground of having been won over, no separate finding is required in respect of the injuries sustained by him. Dr.Saqib Nadeem (PW.3) in his examination-in-chief opined that Sajawal (PW.8) had sustained an

incised stab wound measuring 1 cm x 2.5 cm on the left lumbar region. It is further pertinent to note that although the occurrence allegedly took place at about 6:00/7:00 p.m., the injured was brought to General Hospital, Lahore at about 7:59 p.m. The intervening gap of more than one hour, in the absence of any plausible explanation, assumes significance, particularly when the prosecution case is that the injured was allegedly shifted through ambulance of Rescue 1122. It is further noted that Sajawal (PW.8) while appearing before the trial court also deposed that accused Usman Bhatti and Hafiz Ali Raza were also beating the deceased, that Usman Bhatti caused a danda blow on the head of Qaiser, and that Mohsin inflicted a Chhurri blow on his chest. However, this version stands contradicted by the postmortem examination conducted by Dr.Khyzer Hayat Sukhera (PW.2 who found only a single stab wound on the body of the deceased and did not notice any other injury, not even a minor scratch, thereby rendering the ocular account materially inconsistent with the medical evidence. Moreover, the testimony of Sajawal (PW.8) is also rendered doubtful in view of document (Exh.DE), whereby the complainant Mst.Khatoon Bibi (PW.9) is shown to have approached the police authorities seeking addition of Section 109 PPC against Sajawal (PW.8) alleging his connivance with the appellant and others. The complainant herself, during cross-examination, admitted having moved application before the Chief Minister/I.G. Punjab in respect of the occurrence and Exh.DE is stated to be one such document. In these circumstances, the possibility that application (Exh.DE) was moved to pressurize the witness for a favourable version against the appellant cannot be ruled out.

10. This Court has further observed that the postmortem examination upon the body of the deceased Qaiser Junaid was conducted by Dr.Khyzer Hayat Sukhera (PW.2) on 09.02.2018 at about 11:30 a.m., who noted a solitary stab wound measuring 7x3x2 cm on the right lower chest and accordingly prepared the postmortem report (Exh.PF). The doctor further opined that the probable duration between injury and death was 10 to 20 minutes, whereas the duration

between death and postmortem was approximately 15 to 16 hours. A perusal of the postmortem report (Exh.PF) reveals that according to the doctor's opinion the death had occurred on 08.02.2018 at about 7:00 p.m. If the said opinion regarding the time of death is accepted as correct, the prosecution version that the deceased expired at General Hospital, Lahore stands seriously belied. It is further reflected from the statement of the doctor that the dead body was received in the mortuary at about 1:20 a.m. on 09.02.2018, whereas the police papers were submitted at about 11:00 a.m. on the same day. The occurrence had taken place at about 6:00/7:00 p.m. on 08.02.2018, whereas the postmortem examination was conducted at 11:30 a.m. on 09.02.2018, thus causing an unexplained delay of more than seventeen hours in conducting the autopsy. The doctor himself attributed this delay to the inaction on the part of the police in forwarding the requisite papers in time. This aspect assumes further significance when viewed in the light of the inquest report (Exh.PE), according to which the police had received information regarding the death of the deceased at about 7:40 p.m. on 08.02.2018. These circumstances, taken cumulatively, cast serious doubt on the transparency of the prosecution case and give rise to an inference that the same is not free from embellishment and is afterthought. It is further noted that while Dr. Khyzer Hayat Sukhera observed a single stab wound measuring 7x3x2 cm on the deceased, whereas Dr. Saqib Nadeem, who examined Sajawal (PW.8) noted a stab wound measuring 1 cm x 2.5 cm. According to the prosecution case, both injuries are attributed to the appellant, however, the marked disparity in the dimensions of the injuries lends support to the inference that the same could also be the result of different weapons of different sizes, particularly when the medical evidence does not conclusively link the injuries to a single weapon. Be that as it may, once the prosecution has failed to satisfactorily establish the presence of the alleged eyewitnesses at the place of occurrence, the medical evidence, by itself, is not sufficient to sustain the conviction of the appellant Mohsin Raza. It is by now well-settled that medical evidence is essentially corroborative in nature, it may confirm the

nature, seat, duration of injuries and the kind of weapon used, but it does not, and cannot, identify the assailant. Reliance is placed upon the case reported as Muhammad Tasaweer v. Hafiz Zulkarnain and two others (PLD 2009 Supreme Court 53) wherein the Supreme Court of Pakistan held as under:-

“It is also settled law that medical evidence may confirm the ocular evidence with regard to the seat of injury, nature of the injury, kind of weapon used in the occurrence but it would not connect the accused with the commission of the crime.”

13. In order to ascertain whether any further corroboration is available on record, this Court has carefully examined the material available and finds that, during the course of investigation, the appellant on 14.03.2018 led to the recovery of a Chhurri (P.5), which was taken into possession through recovery memo Exh.PM and subsequently transmitted to the Punjab Forensic Science Agency for examination. However, according to the PFSA report (Exh.PV), although the recovered Chhurri (P.5) was found to be stained with human blood, yet the DNA profiling obtained from items No.1, 2.1, 3.1, 4.1, 5.1, 6.1, 7.1 and 7.2 was of a single source belonging to an unknown male individual. In this way, no match or link was established with the blood of the deceased Qaiser Junaid, rendering the forensic evidence inconclusive so far as the prosecution case is concerned. In these circumstances, the PFSA report does not support the case of the prosecution in any meaningful manner. It is further noted that the learned trial Court has already disbelieved the alleged motive. Therefore, no useful purpose would be served in dilating upon the said aspect any further.

14. In view of the foregoing discussion, this Court is of the considered opinion that the prosecution has failed to establish its case against the appellant Mohsin Raza beyond reasonable doubt. It is by now well-settled that in criminal jurisprudence, any reasonable doubt arising from the prosecution evidence, howsoever slight, must go in favour of the accused. In the present case, the doubts emerging from the prosecution evidence are substantial which clearly entitled the appellant to the benefit thereof. Consequently, Criminal Appeal

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Criminal Revision No.9747 of 2021

No.14980-J of 2021 is allowed. The convictions recorded and sentences awarded to the appellant Mohsin Raza by the learned trial court are hereby set aside, and he is acquitted of the charge. The appellant in custody shall be released forthwith, if not required in any other case. As a necessary corollary, Criminal Revision No.9747 of 2021, filed for enhancement of sentence of Mohsin Raza (respondent No.1) being devoid of merit is hereby dismissed.

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

The judgment was announced
on 13.05.2026, dictated, prepared,
and signed on 18.05.2026
Najum*